

24STCV18864 24STCV18864

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Case Number: 24STCV18864 Hearing Date: July 8, 2026 Dept: 32

KARLA LEIVA,

Plaintiff,

v.

AIDS HEALTHCARE

FOUNDATION,

Defendant.

Case No.: 24STCV18864

Hearing Date: July 8, 2026

[TENTATIVE]

order RE:

defendant's motion to compel further
responses

BACKGROUND

On July 26, 2024, Plaintiff Karla

Leiva filed this action against Defendant Aids Healthcare Foundation for
employment discrimination and retaliation. Plaintiff alleges that she was

terminated while on disability leave after protesting and reporting Defendant's
illegal activities, including unsafe or uninhabitable conditions.

On June 10, 2026, Defendant filed the instant motion to compel further responses to Requests for Admission and the associated Form Interrogatory No. 17.1. Plaintiff filed an opposition on June 24, 2026. Defendant filed a reply on June 30, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

The RFAs at issue seek information about Plaintiff's personal life and events dating back to childhood. These inquiries intrude on Plaintiff's privacy, and Defendant has not demonstrated good cause or direct relevance. (See *Williams v. Sup. Ct.* (2017) 3 Cal.5th 531, 552; *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1017.) Plaintiff's interest in privacy outweighs the need for disclosure. (*Ibid.*)

Defendant argues that it is entitled to discover potential alternative causes of Plaintiff's alleged emotional distress. However, Defendant has failed to show that the specific information requested in the RFAs is properly tailored to this purpose. The information is remote in time, and Defendant merely speculates that certain aspects of Plaintiff's personal life or events in her personal life may have contributed to her emotional distress. Defendant fails to "demonstrate there is a nexus between damages from termination and those which may arise out of" the topics mentioned in the RFAs. (See *Tylo v. Superior Court* (1997) 55 Cal.App.4th 1379, 1388.) Defendant "merely assert[s] the conclusion that there are 'other stressors that might have caused, or contributed to, [Plaintiff's] alleged emotional injuries,' a true fishing expedition." (*Ibid.*, emphasis in original.)

It is well-settled that filing a lawsuit "does not automatically open all of a plaintiff's past medical history to scrutiny." (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 849.) Questions about Plaintiff's

personal life, including her sexuality, drug usage, academics, and family relationships, go beyond the permissible scope of discovery in relation to the issues in litigation. Defendant argues that the information is not speculative because Plaintiff herself brought up the topics during mental health treatment. But Defendant has not established that the issues mentioned during therapy are related to the emotional distress damages alleged in this action. The mere fact that something is mentioned does not automatically establish the requisite nexus. Defendant is ultimately relying on speculation to draw the connection.

CONCLUSION

Defendant's motion to compel further responses is DENIED.